

West Bengal State Electricity Distribution Company Ltd.

(A Government of West Bengal Enterprise)

পশ্চিমবঙ্গ রাষ্ট্র বিদ্যুৎ বণ্টন কোম্পানি লিমিটেড

পশ্চিমবঙ্গ সরকারের একটি উদ্যোগ

Vidyut Bhavan : Bidhannagar

Kolkata : 700 091.

Office Order No. 386

Date : 06.12.10

Sub: Procedures for determining seniority.

Seniority of employees are guided primarily by Regulation 32 of WBSEBESR since adopted by the WBSEDCL. Prior to introduction of APS, for preparing seniority list said Regulation was being followed. After introduction of APS, seniority list of employees promoted under APS, are prepared maintaining their seniority as on the date of introduction of APS, in terms of Clause 6 of Office Order No. P/125 dated 21-06-02. But in respect of cases where employees of two or more cadres are promoted to a single cadre, in absence of published guidelines standard convention is followed. Some guidelines based on the tradition/practice followed so far, to determine *inter-se* seniority of employees of different cadres are, therefore, spelt out below and this will be followed for preparing seniority lists irrespective of any class or cadre :

1. *Seniority shall be determined by the date of joining a post except that when appointment is made from a list prepared on the basis of merit, seniority will be according to the order in which the names appear in the said list and not according to the date of joining. [Clause 32 of WBSEBESR]*
- 1.1 In all such cases where promotions are given on the basis of panels (Merit lists) prepared first, seniority will be determined as per panel position. [Example : in a panel one who is at panel sl.no.1 will be senior to the one who is at panel sl.no.2 irrespective of date of promotion order and irrespective of date of joining] Those empanelled earlier will be senior to those empanelled later.
- 1.2 In case of delay in joining in the promotional post for certain reason(s) beyond the control of the incumbent but delay having been condoned by the Competent Authority, *inter-se* seniority of the promoted employee shall not be disturbed at the time of next promotion only because of the said reasons.
- 1.3 If an employee who is senior to another employee in the feeder post of the same cadre is not empanelled in due time inadvertently but empanelled subsequent to his junior counterpart, his relative seniority in the promoted post will be determined on the basis of *inter-se* seniority in the feeder post.

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- 1.4** However, in case of promotions given under APS, normally relative seniority as on the date of introduction of APS i.e. 25-04-01 shall be maintained irrespective of date of promotion order or irrespective of date of effect of promotion. But in such cases where promotion under APS in respect of an employee is deferred due to being unsuccessful / remaining absent in the suitability test, the position of such employee shall be lowered down in the seniority list but his name will appear on the top of the employees of the year upto which his promotion has been deferred.

2. Combined seniority :

In case of combined seniority in respect of promotees from two different cadres [say, one AE(E) promoted from the post of Sr.SAE(E) and another AE(E) promoted from the post of Jr. Engineer] , when promotions are given on the basis of panel (merit list), *inter-se* seniority will be made as per panel dates and panel positions. However, if panel dates of two different groups are same, *inter-se* seniority will be determined as per their relative seniority in the pre-promotional post.

- 2.1** In case of promotion to a post , from two or more different cadres , given under APS, relative seniority as on the date of introduction of APS i.e. 25-04-01 would be maintained, irrespective of date of effect of promotion to the promoted post.

For example, in case of promotion from the posts of Sr.SAE/Jr.Engineer to the post of AE, given under APS, relative seniority as on the date of introduction of APS i.e. 25-04-01 in the posts of Sr.SAE/Jr.Engineer, would be maintained, irrespective of date of effect of promotion to the promoted post of A.E. and irrespective of cadre i.e. Sr.SAE cadre or Jr.Engineer cadre, subject to provision 1.4 above. If promotions to the posts of Sr.SAE / Jr.Engineer were also made under APS then their relative seniority in the preceding posts i.e. SAE/Special O.A. as on 25-04-01 would be maintained, subject to provision 1.4 above.

- 2.2** Since all promotions before 25-04-01 were vacancy based and were given on seniority-cum-merit basis or merit basis, those promoted prior to 25-04-01 would be senior to those promoted under APS with effect from 25-04-01 or thereafter.



- 2.3 The employees who were empanelled before 25-04-01 but effect of promotion was given from 25-04-01, would be treated as senior to those who were empanelled on or after 25-04-01 and promoted under APS with effect from 25-04-01, irrespective of their inter-se seniority in the pre-promotional post.
3. For promotions from the posts of SE(E), SE(C) and SE(M) to the post of Addl. C.E., combined seniority of selected candidates shall continue to be made after selection. Their inter-se seniority in the post of Addl.C.E. will be determined as per following guidelines :
- 3.1 In case, promotions to the post of SE(E)/SE(C)/SE(M) [from the posts of DE(E)/DE(C)/DE(M)] were given on the basis of Panels [Merit Lists], *inter-se* seniority in the post of Addl.C.E. will be determined as per panel dates and panel positions for the post of SE(E)/SE(C)/ SE(M), subject to provisions 1.4 and 2.2 above. However, if panel dates of two different groups are same, inter-se seniority will be determined as per their relative seniority in the pre-promotional post i.e. in D.E. level.
- 3.2 In case, promotions to the post of SE(E)/SE(C)/SE(M) [from the posts of DE(E)/DE(C)/DE(M)] were given under APS, relative seniority as on the date of introduction of APS i.e. 25-04-01 in the posts of DE(E)/ DE(C)/ DE(M), would be maintained, irrespective of date of effect of promotion to the post of SE(E)/SE(C)/SE(M) and irrespective of cadre i.e. SE(E) or SE(C) or SE(M) cadre, subject to provisions 1.4 and 2.2 above. If promotions to the posts of DE(E)/ DE(C)/ DE(M) were also made under APS, their relative seniority in the preceding posts of AE(E)/AE(C)/AE(M) as on 25-04-01 would be maintained, subject to provisions 1.4 and 2.2 above.
- 4 For the employees who joined the services of the WBSEB/WBSEDCL on or after 25-04-01, all those respective guidelines above shall be followed but their inter-se seniority will be maintained as per their relative seniority in the respective cadre, with reference to their panel dates and panel positions, as on the date of their joining instead of 'on 25-04-01'.

This Issues with the approval of CMD.


4.12.2010
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